



File No.: EXP202312903

RESOLUTION OF FILE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On July 24, 2023, a complaint was filed with the Spanish Agency for Data Protection against A.A.A. with NIF ***NIF.1 (hereinafter, the complained party). The reasons for the complaint are as follows:

The complaining party has shared custody with (...). According to their statement, in October 2022, (...) unilaterally decided to interrupt the work of the school psychologist and seek another psychologist on their own. Furthermore, they state that the complained party is a psychopedagogue, not a psychologist.

The complaining party asserts that the complained party conducted sessions with their (...) without first obtaining the consent of both parents and without prior communication. They also highlight that the complained party obtained psychological reports of their (...) irregularly (deceiving (...)) and contacted the school without any written consent from the parents.

Additionally, they indicate that any psychopedagogical treatment of a minor requires the consent of both parents.

Along with the complaint, they provide the exchanged emails with the complained party.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the complained party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) by certified postal mail, was returned marked "absent" on October 6, 2023, and was reiterated on October 9, 2023, marked as returned "unknown."

The forwarding was reiterated by the same means, with a first delivery attempt recorded on October 23, 2023, marked as "absent," and reiterated, being recorded as notified on October 24, 2023.

No response has been received to this forwarding letter.

THIRD: On October 24, 2023, in accordance with Article 65 of the LOPDGDD, the complaint was accepted for processing.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred to each supervisory authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Lawfulness of processing

The first paragraph of Article 6 of the GDPR establishes the following:

"1. Processing shall be lawful only if at least one of the following applies:

a) the data subject has given consent to the processing of their personal data for one or more specific

purposes;

- b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person;

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e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;

f) the processing is necessary for the purposes of legitimate interests pursued by the data controller or by a third party, provided that such interests do not override the interests or the fundamental rights and freedoms of the data subject requiring protection of personal data, particularly when the data subject is a child.

The provisions in letter f) of the first paragraph shall not apply to processing carried out by public authorities in the exercise of their functions.

On the other hand, as indicated in Article 7.2 of the LOPDGDD, "The processing of data of minors under fourteen years of age, based on consent, shall only be lawful if the consent of the holder of parental authority or guardianship is obtained, to the extent determined by the holders of parental authority or guardianship."

In the case at hand, the complainant submitted a complaint stating that they had shared custody of a minor with their spouse, and that the spouse had decided to terminate the work being done with the minor by the school's counseling service and to seek another professional.

The complainant points out that the respondent would have obtained reports about the minor irregularly, although these would have been provided by the other parent, and that the minor began receiving sessions without obtaining the consent of both parents.

In this regard, the processing of personal data of a minor can only be based on their consent when they are over fourteen years old. Exceptions are made in cases where the law requires the presence of the holders of parental authority or guardianship for the execution of the act or legal transaction in which consent for processing is obtained. The processing of data of minors under fourteen years of age, based on consent, shall only be lawful if the consent of the holder of parental authority or guardianship is obtained, to the extent determined by the holders of parental authority or guardianship. Controversial situations between both parents require consideration of the specific regulations regarding parent-child relationships established by the Civil Code, particularly in Article 156, concerning the parental authority of non-emancipated minors, with acts performed by one of them being valid according to social usage and circumstances or in urgent necessity situations. A similar regulation is contained regarding guardians in Article 237.

In the event of disagreement between both parents regarding the processing of personal data of minors under fourteen years of age, the context and circumstances in which the data is processed must be considered, and whether this data is confidential or intimate and if its processing may be contrary to the minor's interest or affect their privacy.

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In any case, this Agency is not competent to determine which of the parents should prevail in their interpretation, as the Civil Code reserves to the judge, after hearing both parties, and the minor, if applicable, the authority to assign the capacity to decide to one or the other, without this Agency being

able to express an opinion on the matter.

IV

Conclusion

Therefore, based on the information provided in the previous paragraphs, no evidence has been found to substantiate the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection.

This is without prejudice to any subsequent actions that this Agency may undertake, exercising the investigative and corrective powers it holds.

Thus, as it has not been possible to attribute responsibility for the processing as indicated, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to A.A.A. and to the complainant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

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